

Mohd. Ashfaq Khan @ Ashfaq Khan v. State of U.P. thru. Addl. Chief Secy., Energy Deptt., Lucknow & 3 Others

Allahabad High Court (Lucknow Bench) · Division Bench · 18 February 2025 · 2025:AHC-LKO:10428-DB · WRIT - C No. 1595 of 2025 · **Writ petition disposed of; petitioner directed to apply for a fresh connection with indemnity bond/proof of possession under Clause 4.4, to be decided within one week after inspection**

HEADNOTE

Where an electricity connection is disconnected on the application of a subsequent transferee-owner while an occupant/tenant claiming possession disputes the disconnection as harassment, the occupant may apply for restoration/fresh connection in his own name under Clause 4.4 of the U.P. Electricity Supply Code, 2005 by furnishing an indemnity bond and proof of possession; the licensee may conduct an inspection to verify possession before granting the connection, without prejudice to any civil dispute over title/possession between the parties.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

An occupant/tenant whose connection was disconnected at the instance of a transferee-owner may seek a fresh connection under Clause 4.4 by furnishing an indemnity bond and proof of possession, subject to licensee inspection and without prejudice to the parties' civil rights

QUESTION

Can an occupant, whose electricity connection was disconnected upon a transferee-owner's application for permanent disconnection, obtain restoration/a fresh connection in his own name pending a possession dispute?

HOLDING

The petitioner was directed to apply for an electricity connection with an indemnity bond and proof of possession under Clause 4.4; the licensee may inspect to verify possession (hearing the transferee-owner in the process), and if there is no legal impediment and possession is proved, the connection shall be granted — without prejudice to either party's rights to pursue separate proceedings regarding possession/title. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner, claiming to be a tenant/occupant, had his electricity connection disconnected on 7.2.2025 pursuant to a permanent-disconnection application filed by the opposite party no. 4, a subsequent transferee-owner of the premises whose predecessor held the original connection.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupant/tenant may obtain a fresh electricity connection under Clause 4.4 on furnishing an indemnity bond and proof of possession, even amid a dispute with the property's transferee-owner, subject to licensee verification and without prejudice to civil rights. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — UNDERLYING TITLE/POSSESSION DISPUTE BETWEEN THE PETITIONER (OCCUPANT) AND OPPOSITE PARTY NO. 4 (TRANSFEREE-OWNER)

Expressly left open for separate proceedings as may be permissible in law. ¶ [unnumbered order](#)